

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 04/27/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09>

Meeting ID: 161 108 5023
Passcode: 869677

Courtroom Clerk's session

1. 9:00 AM CASE NUMBER: N26-0466
CASE NAME: PETITION OF: CALIFORNIA CIVIL RIGHTS DEPARTMENT, AN AGENCY OF THE STATE OF CALIFORNIA
HEARING ON ORDER TO SHOW CAUSE IN RE:
FILED BY:
TENTATIVE RULING:

Petitioner California Civil Rights Department ("Petitioner") filed a Petition for an Order Compelling Compliance with Subpoena for Interview of Person(s) Most Qualified on or about March 12, 2026 (the "Petition") and the Court issued its Order to Show Cause (the "OSC") pursuant to such Petition upon the *ex parte* application of Petitioner. The OSC was set for hearing on April 27, 2025 with briefing schedule as set forth therein. The Petition and OSC are opposed.

Background

Petitioner issued a subpoena for an investigative interview of the person(s) most qualified for Respondent UnitedHealth Group, Inc. (“Respondent”) on October 2, 2025. See Declaration of Val Erze filed March 12, 2026 (“Erze Decl.”), ¶4. An amended subpoena was served thereafter in November 2025 (the “Amended PMQ Subpoena”). *Id.* at ¶7. Objections were made by the responding party to two subject matters designated, designated as “Topic 19” and “Topic 20.” *Id.* at ¶8 *et seq.* Those subject matters are as follows:

19. Any complaints made against UnitedHealth related to violations of the California Fair Chance Act.
20. Respondent UnitedHealth’s policies, procedures, and practices related to investigations into complaints made by persons for violations of the California Fair Chance Act.

Amended PMQ Subpoena, p. 3, Declaration of Shéyron B. Cobb filed April 14, 2026 (“Cobb Decl.”), **Exhibit A**.

Respondent filed opposition papers in response to the OSC on April 14, 2026. Respondent indicates that its PMQ, Rebecca Dank, was interviewed on November 17, 2025 and “[d]uring the interview, CRD elected to examine Ms. Dank on Topics 19 and 20 notwithstanding Respondent’s prior written objections. Respondent preserved those objections on the record but, at CRD’s direction, allowed Ms. Dank to respond. Ms. Dank answered CRD’s questions regarding Topics 19 and 20 based on her personal knowledge and corporate role.” Cobb Decl., ¶¶4-5.

Thereafter, the parties met and conferred on the scope of such testimony. Cobb Decl., ¶6.

In January 2026, a new subpoena was issued which also included Topics 19 and 20 (the “January 2026 PMQ Subpoena”). Cobb Decl., ¶7 and **Exhibit C** thereto. That

- Topic 19: Any complaints made against UnitedHealth related to violations of the California Fair Chance Act.
- Topic 20: Respondent UnitedHealth’s policies, procedures, and practices related to investigations into complaints made by persons for violations of the California Fair Chance Act.

Respondent also notes that the January 2026 PMQ Subpoena was taken off calendar by agreement of the parties in connection with needing more time to review produced records. Cobb Decl., ¶10-11 and **Exhibits D and E** thereto. This petition then followed.

Reply papers were filed on April 20, 2026.

Analysis

Petitioner contends that Topics 19 and 20 were “not fully addressed in the November 17, 2025 PMQ interview.” See Erze Decl., ¶11. Petitioner did not produce any transcript of the PMQ interview or otherwise address, with specificity, the content of the interview vis-à-vis the extent to which Ms. Dank was able to substantively address Topics 19 and 20.

Moreover, it appears that the earlier PMQ, whatever issues there may have been, was superseded by the January 2026 PMQ Subpoena. That later subpoena was then taken off calendar with Petitioner’s

acquiescence. See Cobb Decl., **Exhibit D** (“We will postpone the PMK interview currently scheduled...”).

Petitioner has not shown that Respondent has failed to produce a witness on the designated topics. Indeed, that has already happened. To the extent that the prior witness was produced to be interviewed, Petitioner has failed to demonstrate that the witness failed to adequately address Topics 19 and 20. The further reply declaration still fails to sufficiently describe the extent of Ms. Dank’s testimony on the subject topics. The reply declaration briefly describes asking the witness “two questions related to the existence and processing of other complaints regarding the Fair Chance Act. CRD also asked the witness if she knew who might have knowledge about investigation of such complaints.” See Declaration of Val Erze filed April 20, 2026 (“Erze Reply Decl.”), ¶13. This says nothing about the scope of the response. Nor was any transcription, if any, provided, as noted above.

Nonetheless, the Court encourages the parties to meet and confer further to resolve the issue about whether a further PMQ designation and interview on these topics may resolve the pending issues.

The Court further notes that Respondent’s opposition declaration appears to downplay the extent to which it expressly refused to produce a PMQ on Topics 19 and 20. See Cobb Decl., ¶¶6-8. However, it appears that there was an outright refusal and standing on the objections. See Erze Reply Decl., **Exhibit 1** (“**Topics 19–20:** Respondent maintains its objections and will not produce a PMK on these topics.”).

Still, the Court concludes that Petitioner has failed to make a sufficient showing for the relief requested, especially given its voluntarily taking the January 2026 PMQ Subpoena off calendar and its failure to make sufficient substantive showing as to the substance of the initial PMQ testimony.

Disposition

The Court finds and rules as follows:

1. The Petition is DENIED and the OSC is DISCHARGED.
2. The Court shall enter the order after hearing.

2. 10:00 AM CASE NUMBER: C24-00605
CASE NAME: VIKAS PRAKASH VS. WILSON AQUINO
JURY TRIAL
FILED BY:
TENTATIVE RULING:

Continued pursuant to Order dated April 24, 2026.

Law & Motion

3. 9:00 AM CASE NUMBER: C23-01360
CASE NAME: LESLEE MARKHAM VS. MICHELLE TIERNAN
***HEARING ON MOTION IN RE: PROTECTIVE ORDER RE DEPOSITION OF MELISSA CASE**
FILED BY: TIERNAN, MICHELLE
TENTATIVE RULING:

Defendant Michelle Tiernan ("Defendant") filed a Motion for Protective Order re Deposition of Melissa Case on December 9, 2025 (the "Motion for Protective Order"). The Motion for Protective Order was set for hearing on April 27, 2026. The motion is opposed.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc., supra*, 148 Cal.App.4th at 402.

Before, during, or after a deposition, any party, any deponent, or any other affected natural person or organization may promptly move for a protective order. Code Civ. Proc. § 2025.420(a). The motion shall be accompanied by a meet and confer declaration under Section 2016.040. *Id.* The court, for good cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. *Id.* at § 2025.420(b).

The Motion for Protective Order indicates that it is based, among other things, on "the Declaration of Nathan D. Pastor, Esq. In Support of Motion For Protective Order Re Deposition of Melissa Case and accompanying exhibits" See Motion for Protective Order, p. 2. As noted in the Opposition, no such declaration appears of record. Moreover, no meet and confer declaration pursuant to Code of Civil Procedure section 2016.040 has been filed.

Accordingly, the motion is wholly unsupported by any showing of a basis to grant the motion and procedurally defective. For those reasons alone, the motion must be denied.

Disposition

The Court finds and rules as follows:

1. The Motion for Protective Order is DENIED.
2. The Court shall issue the order after hearing.

4. 9:00 AM CASE NUMBER: C23-03064
CASE NAME: REIMAGINE CONSULTING VS. GS AND F PLANTS, INC
***HEARING ON MOTION IN RE: QUASH SERVICE OF SUMMONS AND COMPLAINT AND SET ASIDE DEFAULT**
FILED BY: GREEN RICHMOND LLC
TENTATIVE RULING:

Cross-defendants Tony Wei Tong Tom and Green Richmond LLC (“Cross-Defendants”) filed a Motion to Quash Service of Summons and Complaint and Set Aside Default on December 9, 2025 (the “Motion to Quash”). The Motion to Quash was set for hearing on April 27, 2026.

On February 20, 2026, the Court entered its order vacating and setting aside the default against Cross-Defendants based on the stipulation of the parties. Subsequently, the Motion to Quash was withdrawn by the moving parties.

Disposition

The Court finds and orders as follows:

1. The Motion to Quash is DROPPED from calendar as moot and WITHDRAWN.

5. 9:00 AM CASE NUMBER: C24-00566
CASE NAME: LA TONYA BROOKS VS. GEICO INDEMNITY COMPANY
***HEARING ON MOTION IN RE: SET ASIDE ENTRY OF DEFAULT AS TO GEICO INDEMNITY COMPANY**
FILED BY: GEICO INDEMNITY COMPANY
TENTATIVE RULING:

Before the Court is Defendant Geico Indemnity Company (erroneously sued as Geico Insurance)’s Motion to Set Aside Entry of Default (“Motion”).

Defendant’s Request for Judicial Notice is **GRANTED**. (Evid. Code § 452(d).)

Procedural History

Plaintiff filed her original complaint on March 11, 2024, naming Geico as Defendant. Geico appeared in the matter and demurred to the complaint. Plaintiff filed a First Amended Complaint on July 2, 2024. There were additional challenges to the pleadings resulting in, relevant here, Plaintiff’s Fourth Amended Complaint (4AC) being filed on October 21, 2025. Thereafter, on November 21, 2025, Plaintiff sought and a default was entered against Geico.

Geico filed this Motion on December 8, 2025. Plaintiff opposes the Motion.

Analysis

Defendant makes several arguments as to why the default should not have been entered against it.

Timing

First, Defendant notes that the Proof of Service attached to the 4AC indicates that it was served on October 20, 2025, the day **before** it was signed and dated by Plaintiff and filed with the Court. Defendant contends Plaintiff could not have served the 4AC on them before it was signed and/or filed with the Court – indicating that the Proof of Service is unreliable.

Even if the Court takes the Proof of Service as being accurate, the default should not have been entered as the time for Geico to respond had not run when it was granted. A defendant shall answer an amended complaint “within 30 days after service thereof....” (Code Civ. Proc. § 471.5.) California Code of Civil Procedure section 1010.6, which relates to electronic service of documents, states, in pertinent part that “[a]ny period of notice, which time period or date is prescribed by statute or rule of court, shall be extended after service by electronic means by two **court** days....” (Code Civ. Proc. § 1010.6 (a)(3)(B) emphasis added.) As such, Defendant had 30 days + two **court** days to respond to the 4AC.

The 4AC was purportedly electronically served on October 20, 2025. Thirty days after October 20, 2025, is Wednesday, November 19, 2025. Adding two additional court days means that Defendant’s response to the 4AC was due on or before Friday, November 21, 2025.

The Court’s records indicate that Defendant submitted its demurrer and motion to strike at 3:01 p.m. on Friday, November 21, 2025. Defendant had until 11:59 p.m. on that date to file its papers. (Cal. R. Ct. 3.1300 (e).) As such, Defendant did timely respond to the 4AC.

Due to an apparent error in the clerk’s office, the court accepted the Plaintiff’s request for default on November 21 before Defendant’s submission at 3:01 p.m. This is despite the fact that Plaintiff was not eligible to obtain a default until November 22 at the earliest. As the demurrer and motion to strike were received after the default, the clerk’s office mistakenly rejected Defendant’s responsive papers.

Based on the above, Defendant should not have been defaulted as it still had time to – and did in fact attempt to – file its responsive papers to the 4AC.

As such, the Default should be set aside. There are additional reasons worth discussing.

Obligation to warn of impending default

“[I]t is now well acknowledged that an attorney has an *ethical* obligation to warn opposing counsel that the attorney is about to take an adversary’s default.” (*Lasalle*, supra, 36 Cal.App.5th at 135.) In making this finding, the *Lasalle* Court “heartily endorse[d]” the related admonition found in the Rutter Group practice guide, which states:

“[Practice Pointer:] If you’re representing plaintiff and have had *any* contact with a lawyer representing defendant, don’t even attempt to get a default entered without first giving such lawyer *written* notice of your intent to request entry of default, and a reasonable time within which defendant’s pleadings must be filed to prevent your doing so.” (*Ibid.* quoting Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2008) ¶5:71, p. 5-17.) [Note – The 2025 version of the Rutter

Guide still contains this Practice Pointer]

Although there were a minority of cases that held that an ethical breach did not mean there was a legal violation, the *Lasalle* court distinguished those cases, finding they did not consider the enactment of Code of Civil Procedure section 583.130 in January 1984. (*Lasalle*, 36 Cal.App.5th at 136-137.) California Code of Civil Procedure section 583.130 states, in relevant part, that it “is the policy of this state that a plaintiff shall proceed with reasonable diligence in prosecution of any action but that **all parties shall cooperate** in bringing the action to trial or other disposition.” (Code Civ. Proc. § 583.130, emphasis added.) “That is not complicated language... The policy of the state is that the parties to a lawsuit ‘shall cooperate.’ Period. Full Stop.” (*Lasalle*, 36 Cal.App.5th at 130.)

Given the above, the “ethical obligation to warn opposing counsel of an intent to take a default is now reinforced by a statutory policy that all parties ‘cooperate in bringing the action to trial or other disposition.’” (*Id.* at 137.) “Quiet speed and unreasonable deadlines do not qualify as ‘cooperation’ and cannot be accepted by the courts.” (*Ibid.*)

The “obligation to advise opposing counsel of an impending default is part of an attorney’s responsibility to the court and the legal profession and takes precedence over the obligation to represent the client effectively.” (*Shapell Socal Rental Properties, LLC v. Chico’s FAS, Inc.* (2022) 85 Cal.App.5th 198, 213 citing *Lasalle*, 36 Cal.App.5th at 134, 137.) “The State Bar Civility Guidelines deplore the conduct of an attorney who races opposing counsel to the courthouse to enter a default before a responsive pleading can be filed.” (*Id.* at 135.)

While Plaintiff here is acting in pro per, that does not excuse her actions in failing to notify opposing counsel that she intended to seek a default. “Pro. per. litigants are held to the same standards as attorneys.” (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543.) Thus, courts “see no reason why the rules of professional conduct, at least as those rules govern conduct in the actual course of litigation, should not apply to pro per litigants in the very cases where pro per litigants elect to act as their own attorneys.” (*Ibid.*) “To say otherwise would be to give pro per litigants ... an unfair advantage over parties represented by attorneys bound by the code.” (*Ibid.*)

Plaintiff made no attempt to warn Defendant. It is clear that Defendant is actively litigating this matter – as they have been disputing the pleadings for over two years. Plaintiff’s attempt to obtain a default without alerting them will not be countenanced.

Conclusion

Based on the above, Defendants’ Motion is **GRANTED**. The default entered on November 21, 2025, is set aside. Defendant shall file their responsive pleadings within ten (10) days of notice of entry of the Order on this Motion.

6. 9:00 AM CASE NUMBER: C24-01405
CASE NAME: ESTELA FLORES VARGAS VS. GENERAL MOTORS LLC
*HEARING ON MOTION IN RE: ATTORNEY'S FEES, COSTS, AND EXPENSES
FILED BY: FLORES VARGAS, ESTELA
TENTATIVE RULING:

Plaintiffs Estela Flores Vargas and Silvino M Ramirez ("Plaintiffs") filed a Motion for Attorney's Fees, Costs and Expenses on December 10, 2025 (the "Motion for Fees and Costs"). Plaintiff seeks an award of \$34,820.64, inclusive of \$33,162.25 in attorneys' fees and \$1,658.39 in costs as against defendant General Motors LLC ("Defendant"). The Motion for Fees and Costs was set for hearing on April 27, 2026. The motion is opposed.

Background

This matter was resolved by way of a settlement agreement between the Plaintiff and Defendant (the "Settlement Agreement"). See Declaration of Arbore Kornely filed December 10, 2025 ("Kornely Decl.") ¶¶30-32 and **Exhibit 2** thereto. Among the terms was a settlement payment of \$200,000 payable to Plaintiffs by Defendant. Settlement Agreement, ¶13, Kornely Decl., **Exhibit 2**. The agreement also includes a provision that Plaintiffs are the prevailing parties and provides for recovery of attorneys' fees "reasonably incurred" by Plaintiffs in connection with the commencement and prosecution of the action:

- (ii) Defendant shall pay Plaintiff attorney's fees, costs, and expenses in an amount determined by the Court, by way of a single noticed motion, to have been reasonably incurred by Plaintiffs in the commencement and prosecution of this action, unless the parties agree on the amount of fees, costs and expenses to be paid absent such a motion. The parties agree that Plaintiffs are the prevailing party for purposes of the motion. Defendant reserves the right to oppose any fee motion to be filed in this case.

Id.

The Motion for Fees and Costs is supported by the declaration of Plaintiffs' attorney summarizing the conduct of the litigation and outcome achieved. See Kornely Decl., ¶13 *et seq.* The declaration describes the billing attorneys' and paralegals' background and professional experience. See Kornely Decl., ¶133 *et seq.* The declaration further describes the firm's billing practices and proffers supporting billing records. *Id.* at ¶142 and **Exhibit 5** thereto.

The total "base" amount billed was \$20,441.50. *Id.* at ¶142. Plaintiffs seek a "lodestar multiplier" of 1.5 in light of the litigation, Defendant's conduct and the outcome achieved. See Memorandum of Points and Authorities (MPA), Motion for Fees and Costs, p.1 *et seq.* The motion seeks an additional \$2,500 for estimated further attorney's fees in connection with this motion. *Id.* at ¶147.

Plaintiffs' motion is further supported by a Request for Judicial Notice attaching several attorneys' fees award decisions in other matters involving Plaintiffs' law firm. Request for Judicial Notice filed December 10, 2025, Attachments 1 and 2 (**Exhibits 3 and 4** to Kornely Decl.); see also, Kornely Decl., ¶¶139-40. The Request for Judicial Notice is GRANTED.

Defendant filed an Opposition on April 13, 2026, along with a opposition declaration.

Plaintiffs filed a Rely on October 20, 2026, along with a supplemental Declaration of Arbre Kornely on the same date ("Supp. Kornely Decl."). That supplemental declaration includes a breakdown of the billings incurred in responding to the opposition. Supp. Kornely Decl., ¶16. Those fees total \$2,205. *Id.* \$76.50 in further expenses is reflected as well. *Id.* at ¶17.

Analysis

A trial court has broad authority to determine the amount of reasonable attorneys' fees. *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095; see CJER, *California Judges Benchbook: Civil Proceedings—Trial* (2025) ("CJER Civ. Pro.—Trial"), § 16.83. The fee setting inquiry ordinarily begins with the "lodestar," i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. *PLCM Group, Inc. v. Drexler, supra*, 22 Cal.4th at 1095. California courts have consistently held that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award. *Id.* The reasonable hourly rate is that prevailing in the community for similar work. *Id.* The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. *Id.* The trial court makes its determination after consideration of a number of factors, including the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case. *Id.* at 1096.

The Court has reviewed the stated hours and the nature of the legal work reflected in the proffered billing statements, considering, among other things, the work described as well as the particular information provided by all parties as to the nature and necessity of such work. The Court has considered the hourly rates by timekeeper for such work and the number of hours reasonably expended by such timekeepers. The Court has also otherwise considered the hours sought and charges therefor in view of all of the relevant factors, as noted above. The Court finds the 49.4 hours billed and the total base fees of \$20,441.50 to be eminently reasonable and necessary to the conduct of the litigation. The Court further finds that the lodestar multiplier of 1.5 is just and appropriate in view of all of the relevant factors. \$20,441.50 times 1.5 equals \$30,662.25.

The Court has considered and rejects Defendant's contention that the motion is untimely. Other than a reduction from the "anticipated" fees to respond to any opposition (down to the actual incurred amounts shown in the reply papers),* the Court has considered and rejects Defendant's contentions that any further reductions ought to be made to the claimed attorneys' fees.

*Despite such reduction down to \$2,205.00, after application of the lodestar multiplier of 1.5, the subtotal for that portion of the awarded fees is \$3,307.50. \$3,307.50 plus 30,662.25 totals \$33,969.75.

Costs

The Court finds that the claimed costs in the amount of \$1,119.37 are recoverable and were necessary to the conduct of the litigation. See Memorandum of Costs filed October 27, 2025 (\$1042.87); see also Supp. Kornely Decl., ¶16 (\$76.50).

Disposition

The Court finds and orders as follows:

1. The Motion for Fees and Costs is GRANTED.

2. Plaintiffs are awarded and shall recover from Defendant attorneys' fees in the sum of **\$33,969.75.**
3. Plaintiffs are awarded and shall recover from Defendant costs of suit in the sum of **\$1,119.37.**
4. A proposed form of order was lodged with the Court which the Court shall execute and enter.

7. 9:00 AM CASE NUMBER: C24-02121
CASE NAME: SILVINO RAMIREZ VS. ANSELMO OCAMPO
***HEARING ON MINOR'S COMPROMISE RE: MYLENE RAMIREZ**
FILED BY: RAMIREZ, SILVINO
TENTATIVE RULING:

Petitioner Silvino Ramirez, the duly appointed guardian ad litem herein, filed two separate petitions for approval of compromise of minor's claims on December 8, 2025 (the "Minor's Compromise") seeking court approval of the compromise and proposed disposition set forth therein relating to the minor claimants Mylene Ramirez and Melanie Ramirez. See Code Civ. Proc. § 372 and Rule 7.950 *et seq.* of the California Rules of Court (CRC). The Minor's Compromise was set for hearing on April 27, 2026.

Analysis

The Minor's Compromise is unopposed. The Court has considered the verified Minor's Compromise and supporting declarations. The Court finds the proposed terms to be just and reasonable.

Disposition

The Court finds and rules as follows:

1. The Minor's Compromise is APPROVED.
2. The Court shall enter the proposed orders lodged with the moving papers.

8. 9:00 AM CASE NUMBER: C24-02121
CASE NAME: SILVINO RAMIREZ VS. ANSELMO OCAMPO
***HEARING ON MINOR'S COMPROMISE RE: MELANIE RAMIREZ**
FILED BY: RAMIREZ, SILVINO
TENTATIVE RULING:

See LINE 7 above.

9. 9:00 AM CASE NUMBER: C24-03520
CASE NAME: MARNA PAINTSIL ANNING VS. WILDWOOD AT VILLAGE PARK OWNERS' ASSOCIATION
***HEARING ON MOTION IN RE: CONTINUED FROM MARCH 30, 2026**
FILED BY:
TENTATIVE RULING:

Defendant Wildwood at Village Park Owners' Association ("Defendant") filed a Motion for Reasonable Attorneys' Fees and Costs on November 14, 2025 (the "Motion for Fees and Costs"). The Motion for Fees and Costs was set for hearing on March 30, 2025. The motion is opposed.

At the hearing on the Motion for Fees and Costs, plaintiff Marna Paintsil Anning (“Plaintiff”) requested a court-provided court reporter for the hearing. The matter was called on the record with a privately retained court reporter supplied by the moving party. In its discretion, the Court granted a continuance to provide plaintiff the opportunity to ensure that plaintiff had a valid current fee waiver on file and to request, through the appropriate court process, a court-provided court reporter for the next hearing date. See Order entered April 1, 2025. The Motion for Fees and Costs was continued to April 27, 2026. All parties were present and had actual notice of the continued hearing date.

Background

Following the sustaining of Defendant’s demurrer to Plaintiff Marna Paintsil Anning’s (“Plaintiff”) Complaint without leave to amend, the Court entered judgment in favor of Defendant and found Defendant to be the prevailing party. See Judgment for Dismissal after Demurrer Sustained Without Leave to Amend entered September 19, 2025 (the “Judgment”).

The Judgment provided, among other things, that “Defendant may recover its reasonable attorneys’ fees and costs, in an amount to be determined upon noticed motion and cost bill.” *Id.*

The Motion for Fees and Costs is supported by the Declaration of Melina Rezaei filed November 14, 2025 (the “Supporting Declaration”).

The Supporting Declaration includes a summary of the legal services rendered and expenses incurred in the litigation of the matter. See Supporting Declaration, ¶¶7-9 and **Exhibit A** thereto. The fees sought total **\$43,703.00**. See *id.* at ¶9 and **Exhibit A** thereto. The costs sought total **\$1,070.58**. See *id.* at ¶10 and **Exhibit A** thereto.

Analysis

Plaintiff filed an Opposition to the Motion for Fees and Costs. Essentially, the Opposition argues that the issue of an award of attorneys’ fees and costs is embraced within the scope of a pending appeal and the trial court cannot rule on this motion pending the resolution of the appeal. See Opposition, p. 4 *et seq.*

As addressed in Defendant’s reply, an appeal of a judgment does not prevent the trial court from ruling on a motion for an award of attorneys’ fees.* *Robertson v. Rodriguez* (1995) 36 Cal.App.4th 347, 360 (trial court properly concluded it had jurisdiction to proceed because the trial court retains jurisdiction to entertain a motion for attorney fees despite an appeal).

The Opposition does not otherwise take issue with any of the specific billings or costs claimed. Nonetheless, the Court has reviewed the claimed attorneys’ fees and costs.

Having reviewed all of the claimed attorneys’ fees and the description of the work to which the claimed fees related (see Supporting Declaration, **Exhibit A**), the Court finds all of the claimed fees reasonable except as to the following: (a) certain excess or vague time reflected in billings for internal office management and communication (see e.g. 02/09/2025 time entry for time including “[c]onfer with management regarding case status”) and (b) excess time reflecting billings for file review; and (c) excess time reflecting billings for reporting to insurer (see e.g. 05/27/2025 time entry). The trial court has broad authority to determine the amount of a reasonable fee. *Holquin v. Dish Network LLC* (2014) 229 Cal.App.4th 1310, 1329.

The Court finds, in the exercise of its discretion, that a total reduction of attorneys’ fees down to **\$42,000.00** is just and reasonable. The Court finds that such amount for legal services rendered was

reasonable given the nature and scope of the issues in the case and the litigation that occurred up to the entry of the Judgment. See Supporting Declaration, **Exhibit A**.

The Court further finds that the **\$1,070.58** in claimed costs were reasonable and necessary to the conduct of the litigation. See Supporting Declaration, **Exhibit A**, p. 9.

*In addition, the Court notes that, since the last hearing, the Court of Appeal issued an order dated April 16, 2026 denying Plaintiff's request for immediate stay and petition for writ of prohibition.

Disposition

The Court finds and orders as follows:

1. The Motion for Fees and Costs is GRANTED.
2. Defendant is awarded and shall recover from Plaintiff attorneys' fees in the sum of **\$42,000.00**.
3. Defendant is awarded and shall recover from Plaintiff costs of suit in the sum of **\$1,070.58**.
4. The Court will issue the order after hearing.

10. 9:00 AM CASE NUMBER: C25-01037
CASE NAME: ROBERT LOPEZ VS. MARILYNE CASTILLO
HEARING ON DEMURRER TO: ANSWER OF ROBERT LOPEZ
FILED BY: CASTILLO, MARILYNE
TENTATIVE RULING:

Before the Court is Defendant/Cross-Complainant Marilyne Castillo's Demurrer to Cross-Defendant's Affirmative Defenses in Defendant's Answer ("Demurrer").

The hearing on the Demurrer is continued until **June 22, 2026**, as outlined below.

Factual and Procedural Background

Plaintiff filed the Complaint in this matter on April 11, 2025. According to the Complaint, Plaintiff and Defendant both own real properties located at 2345 Paloma Court in Pinole, California. Plaintiff owns unit #6 which is directly above unit #2, which is owned by Defendant. Defendant rents out her unit to tenants. The Complaint generally relates to alleged nuisance and trespass claims by Plaintiff relating to Defendant's tenant's actions and Defendant's failure to manage her tenants and enforce the HOA rules.

Defendant filed a cross-complaint against Plaintiff on June 20, 2025. Plaintiff/Cross-Defendant demurred to the cross-complaint. The First Amended Cross-Complaint ("FACC") was filed on October 10, 2025. Plaintiff/Cross-Defendant filed his Answer to the FACC on November 12, 2025. Nine days later, on November 21, 2025, counsel for Defendant/Cross-Complainant filed a Declaration Regarding Inability to Comply with Meet and Confer Requirement ("Inability Declaration") related to his proposed Demurrer to the Answer. He then filed the Demurrer on December 9, 2025.

Legal Standard

The standard for a demurrer to an answer is whether the answer states facts sufficient to constitute a defense. (*South Shore Land Co. v. Petersen* (1964) 226 Cal.App.2d 725, 732.) A defendant must set

forth the “essential facts” of the affirmative defense, “sufficient to acquaint [plaintiff] with the nature, source and extent” of the defense. (*Ludgate Ins. Co. v. Lockheed Martin Corp.* (2000) 82 Cal.App.4th 592, 608.)

Code of Civil Procedure § 431.30(b) provides that an answer to a complaint shall contain:

- (1) The general or specific denial of the material allegations of the complaint controverted by the defendant.
- (2) A statement of any new matter constituting a defense.

“The phrase ‘new matter’ refers to something relied on by a defendant which is not put in issue by the plaintiff. Thus, where matters are not responsive to essential allegations of the complaint, they must be raised in the answer as ‘new matter.’” (*State Farm Mut. Auto. Ins. Co. v. Superior Court* (1991) 228 Cal.App.3d 721, 725, internal citations omitted.) A new matter is one in which the defendant has the burden of proof. (*Harris v. City of Santa Monica* (2013) 56 Cal.4th 203, 239.)

“Such ‘new matter’ is also known as ‘an affirmative defense.’ [citation] Affirmative defenses must not be pled as ‘terse legal conclusions,’ but rather ... as facts ‘averred as carefully and with as much detail as the facts which constitute the cause of action and are alleged in the complaint.’” (*Department of Finance v. City of Merced* (2019) 33 Cal.App.5th 286, 294 quoting *Quantification Settlement Agreement Cases* (2011) 201 Cal.App.4th 758, 812-13.); see also, *FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 384 [same]; *South Shore Land Co., supra*, 226 Cal.App.2d at 732 [“Generally speaking, the determination whether an answer states a defense is governed by the same principles which are applicable in determining if a complaint states a cause of action.”].)

For the purposes of the ruling on demurrer, *i.e.*, to test the sufficiency of the answer, it admits all facts well pleaded in the answer, including denials. (*Miller & Lux v. San Joaquin Light & Power Corp.* (1932) 120 Cal.App. 589, 600, [demurrer “admitted the truth of all issuable facts pleaded in the answer and eliminated all allegations in the amended complaint denied by the answer”]; *Warren v. Harootunian* (1961) 189 Cal.App.2d 546, 548.) A failure to demur specially is a waiver of defects of form. (*Allerton v. King* (1929) 96 Cal.App. 230, 233, 235.)

Even where a defense is defectively pled, it may be allowed if the defendant’s pleading gives sufficient notice to enable the plaintiff to prepare to meet the defense, in part because un-pled defenses are waived. (See *Harris v. City of Santa Monica* (2013) 56 Cal. 4th 203, 240.) “The determination of the sufficiency of the answer requires an examination of the complaint because its adequacy is with reference to the complaint it purports to answer.” (*South Shore Land Co. v. Petersen* (1964) 226 Cal.App.2d 725, 733.)

Initial Consideration

The basis of Cross-Complainant’s Demurrer is essentially that the Answer does not provide sufficient facts to support several of the affirmative defenses. Instead of putting this matter before the Court, Cross-Complainant’s counsel could have easily served Form Interrogatory No. 15.1 on Cross-Defendant. That Interrogatory states:

Identify each denial of a material allegation and each special or affirmative defense in your pleadings and for each:

- (a) **state all facts upon which you base the denial or special or affirmative defense;**

- (b) state the names, ADDRESSES, and telephone numbers of all PERSONS who have knowledge of those facts; and
- (c) identify all DOCUMENTS and other tangible things that support your denial or special or affirmative defense, and state the name, ADDRESS, and telephone number of the PERSON who has each DOCUMENT. (emphasis added.)

If Cross-Complainant believed that there was no factual basis for the asserted affirmative defenses, it could have required Cross-Defendant to provide the facts, as well as identify the person(s) and document(s) that support each affirmative defense. This is a more efficient method for addressing these issues, instead of burdening the Court with a motion which, even if granted, will give Cross-Defendant an opportunity to amend to reassert, thereby soliciting another round of demurrer.

As the Rutter Guide helpfully explains in a Practice Pointer:

A demurrer can be used to eliminate ‘boilerplate’ affirmative defenses that often appear in answers (e.g., ‘waiver,’ ‘estoppel,’ ‘unclean hands,’ etc.). ***But such demurrers are very rare, probably because they are not worth the cost when the same result can be achieved by serving requests for admission or standard form interrogatories seeking the bases for the affirmative defenses.*** (Weil & Brown et al., Cal. Prac. Guide: Civ. Proc. Before Trial (The Rutter Group 2020) ¶ 7:35.1, p. 7(l)-20 (emphasis added).)

While the Court believes that properly propounded Form Interrogatory No. 15.1 is an appropriate means of settling conclusory pleaded affirmative defenses and that the Court’s and the litigant’s time would be better served by such an approach, the Court will address the Demurrer presented by Cross-Complainant if, after the parties properly meet and confer, Cross-Complainant still wishes to proceed with the Demurrer.

Meet and Confer Requirement

Before filing a demurrer, the “demurring party shall meet and confer in person, by telephone or by video conference with the party who filed the pleading that is subject to the demurrer....” (Code Civ. Proc. § 430.41(a) (emphasis added.)) The meet and confer “shall” include a discussion of the legal support for the parties’ positions. (Code Civ. Proc. § 430.41(a)(1).) The meet and confer is to take place at least 5 days prior to the date the responsive pleading is due. (*Id.* at (a)(2).)

The demurring party shall file and serve a declaration stating that either:

- “(A) The means by which the demurring party met and conferred with the party who filed the pleading subject to the demurrer, and that the parties did not reach an agreement resolving the objections raised in the demurrer. [or]
- (B) That the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith.” (Code Civ. Proc. § 430.41(a)(3).)

Meet and Confer Efforts

Cross-Defendant filed his Answer to the FACC on November 12, 2025. As such, Cross-Complainant’s

Demurrer would be due on or before December 12, 2025. Cross-Complainant's counsel's Inability Declaration in support of the automatic extension indicates that on Tuesday "November 18, 2025, [he] emailed counsel for Cross-Defendant Christina Weed requesting that we meet and confer, in compliance with Code of Civil Procedure § 430.41(a)." (¶ 5.) Three days later, on November 21, Cross-Complainant's counsel filed the Inability Declaration. The Inability Declaration was filed at 8:37 a.m. – before regular business hours. The parties still had sixteen days to meet and confer.

Eighteen days later, on December 9, 2025, only 2 days after the original 30-day deadline had passed and 28 days before the automatic 30-day extension expired, Cross-Complainant filed their Demurrer to the Answer. The declaration in support of the Demurrer includes the same meet and confer 'attempt' as that laid out in the Inability Declaration. There are no other indications that Cross-Complainant's counsel attempted to reach out to Cross-Defendant's counsel after the initial attempt on November 18.

Initially, the Code requires that as part of the meet and confer the demurring party shall identify the specific issues it believes are subject to demur and "identify with legal support the basis of the deficiencies." (Cal. Code Civ. Proc. § 430.41 (a)(1).) Cross-Complainant's Counsel's two declarations both indicated he emailed "counsel for Cross-Defendant Christina Weed requesting that we meet and confer...." (Decls. ¶ 5.) There is no indication that the meet and confer request included any substantive argument and/or legal authority for their position.

After sending the initial email, counsel only waited three days before filing the Inability Declaration indicating that he was "unable to meet and confer ... within the time required under" the Code. (¶ 7.) This is despite the fact that there were still sixteen days left in which to meet and confer. Cross-Complainant's counsel did not provide adequate time for opposing counsel to respond.

After filing the Inability Declaration, Cross-Complainant's counsel waited just over two weeks before filing the Demurrer without any additional attempts to contact opposing counsel. In other words, counsel relied upon the single email from November 18 as the basis for the attempted meet and confer.

The Code is very clear that counsel for the parties are required to **speak** to each other and to make a **good faith attempt** to resolve their issues before filing a Demurrer. The 'efforts' outlined by Cross-Complainant's counsel's declaration indicates this did not occur. Counsel sent a single email 'requesting to meet and confer' without any substantive argument or legal authority. When he did not hear back three days later he sought and obtained a 30-day extension. Then, without any additional attempts to meet and confer filed the Demurrer. This is not a good faith effort to comply with the Code.

It is also worth noting that at no time after November 18 did Plaintiff/Cross-Defendant's counsel respond to the November 18 email. There is no declaration explaining why they never responded to the meet and confer request. The Code's requires cooperation in meeting and conferring before a demurrer is filed. This includes responding to requests from opposing counsel.

Conclusion

As the Parties have failed to properly meet and confer prior, the Court orders as follows:

- The parties are ordered to meet and confer in person, via telephone or video conference on or before 5:00 p.m. on **May 29, 2026**.
- Cross-Complainant's counsel shall file a declaration by 4:00 p.m. on **June 5, 2026** confirming when and how the meet and confer took place.
- The declaration shall state that the Parties either (1) reached an agreement on the merits of the Demurrer and the Parties are stipulating to the filing of an amended answer, or (2) did not reach an agreement and the Court should proceed with ruling on the Demurrer as filed – or any portion thereof to which the Parties could not agree. (For example, if Cross-Defendant agrees to withdraw any of the Affirmative Defenses, the parties shall notify the Court of this.)

The hearing on the matter is continued until **June 22, 2026**.

11. 9:00 AM CASE NUMBER: C25-01362
CASE NAME: BRUNO VIEIRA VS. JIMMY BASTOS
***HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL FOR PLTFs**
FILED BY:
TENTATIVE RULING:

Gregory W. Reaume ("Counsel") filed a motion to be relieved as counsel on January 15, 2026 (the "Motion to be Relieved as Counsel"). The Motion to be Relieved as Counsel was set for hearing on June 1, 2026. The motion was subsequently advanced for hearing to April 27, 2026 by the Court's Order entered April 27, 2026.

Background

Counsel seeks to be relieved as attorneys for plaintiff Bruno Melo Vieira ("Plaintiff").

The supporting declaration filed by Counsel indicates that ongoing "irreconcilable differences" have arisen between counsel and Plaintiff which have made it unreasonably difficult for the attorney to carry out the representation effectively. See Declarations filed January 15, 2026, ¶2. Plaintiff has been given notice of the Motion to be Relieved as Counsel. *Id.* at ¶3.

No opposition or other response has been filed by Plaintiff or any other party.

Analysis

The Motion to be Relieved as Counsel is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion to be Relieved as Counsel is GRANTED.
2. Counsel to submit a revised order after hearing. The form MC-053 Order should be updated to reflect the latest calendar settings at Paragraph 7 and updated departmental and other hearing information.

12. 9:00 AM CASE NUMBER: C25-02242

CASE NAME: MECHANICS BANK VS. BHUPINDER LALLY

HEARING ON SUMMARY MOTION BY PLAINTIFF.

FILED BY: MECHANICS BANK

TENTATIVE RULING:

The Court, *sua sponte*, continues this matter to **May 4, 2026, 9:00 am in Department 34.**

13. 9:00 AM CASE NUMBER: C25-02968

CASE NAME: PAMELA SWARTS VS. AMY PATTON

***HEARING ON MOTION IN RE: CONSOLIDATE RELATED CASES**

FILED BY: SWARTS, PAMELA

TENTATIVE RULING:

Plaintiff Jeffrey Swarts and plaintiff and defendant Pamela Swarts (“Moving Parties”) bring this motion to consolidate in an effort to consolidate this matter (C25-02968), with a case originally brought in small claims court (MSC25-0485), which was filed by plaintiffs and defendants Travis Patton and Amy Patton (“Opposing Parties”).

For the reasons set forth below, the motion to consolidate is GRANTED.

Background

Opposing Parties filed a small claims action on August 26, 2025, asserting that they executed a lease agreement with Pamela Swarts for the rental of real property (the “Property”). Opposing Parties paid the first month’s rent (\$6,600) and a security deposit (\$6,600) but allege that they soon learned that there was a severe rodent infestation, that was not disclosed, at the Property. They elected to terminate the lease and subsequently sought \$12,500 in small claims court, as a refund of their security deposit and first month’s rent.

Moving Parties filed an unlimited civil action on October 13, 2025, against Opposing Parties and defendant Carolyn Lehman (“Lehman”), asserting a claim against Opposing Parties for breach of contract and asserting claims against Lehman for intentional interference with prospective economic relations and defamation.

On December 30, 2025, the Court entered an order that pursuant to Code of Civil Procedure section 116.390, the small claims case would be transferred to the Superior Court. On January 27, 2026, the Court denied a motion for reconsideration of the December 30, 2025 order.

Legal Standard

Code of Civil Procedure section 1048 provides, “When actions involving a common question or law or fact are pending before the court, it may order a joint hearing or trial of any or all of the matters in

issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay.” (Code Civ. Proc., § 1048, subd. (a).) The decision to consolidate is left to the discretion of the trial court. (*Todd Steinberg v. Dalkon Shield Claimants Trust* (1996) 48 Cal.App.4th 976, 978-979 [“Code of Civil Procedure section 1048 grants discretion to the trial courts to consolidate actions involving common questions of law or fact. The trial court’s decision will not be disturbed on appeal absent a clear showing of abuse of discretion.”].)

The Court in *Askew v. Askew* (1994) 22 Cal.App.4th 942, explained: “A motion to consolidate under section 1048 of the Code of Civil Procedure is predicated on the assumption that two or more actions already ‘involv[e] a common question of law or fact.’ The motion requests the court to exercise its *discretion* to consolidate the actions (the court ‘*may order a joint hearing or trial of any or all the matters in issue in the actions,*’ italics added). Therefore, it is possible that actions may be thoroughly ‘related’ in the sense of having common questions of law or fact, and still not be ‘consolidated,’ if the trial court, in the sound exercise of its discretion, chooses not to do so.” (*Id.*, at p. 964 [italics in original].)

Notice of Motion Filing Requirement

California Rules of Court, rule 3.350(a), requires the notice for a motion for consolidation to be filed in each case sought to be consolidated. Here, Moving Parties have not filed notice of this motion in the small claims case. However, the Court will disregard this defect and proceed to the merits of this motion in light of its view that this defect does not affect the substantial rights of the parties. This is because the parties in the civil matter are the same as in the small claims matter and also because Defendant did not raise this issue in its opposition. (Code Civ. Proc., § 475 [“The court must, in every stage of an action, disregard any error, improper ruling, instruction, or defect, in the pleadings or proceedings which, in the opinion of said court, does not affect the substantial rights of the parties.”].)

Analysis

Moving Parties argue that the Court should consolidate this case (C25-02968) with the small claims matter filed by Opposing Parties (MSC25-0485) because both cases “involve identical parties and arise out of the same rental and same course of conduct, such that complete consolidation should be ordered.” (MPA ISO Motion to Consolidate [“Motion”], p. 3:17-20.) They further argue that “Consolidation under these circumstances is warranted and will serve to promote trial convenience and economy by avoiding duplication of procedure and delay, particularly as to duplication of proof of issues common to both cases.” (*Id.*, at p. 3:19-22.)

Opposing Parties argue in opposition to this Motion, that they oppose consolidation because it would deprive them of the small claims forum they filed in. (Opposition, p. 1.) They affirmatively desire to continue their claims in the small claims’ forum for adjudication of the restitution issues their case presented, including whether the lease was effectively rescinded due to habitability violations. (*Ibid.*) On reply, Moving Parties argue that Opposing Parties’ opposition “fails to address any facts or law cited in [Moving Parties’] motion.” (Reply, p. 1.) The reply goes on to argue that “[n]ow that the small claims case has been transferred to the unlimited civil division and the motion for

reconsideration of that transfer has been denied, judicial economy is best served by consolidating the two cases as they concern the same contract, same parties (with the exception of the addition of Defendant Carolyn Lehman in C25-02968), and the same events.” (*Id.*, at pp. 1-2.)

The Court notes that the two matters sought to be consolidated have nearly identical parties, with the addition of Carolyn Lehman in the unlimited civil action. The two cases also both involve the same lease and the same issue as to whether the Property was uninhabitable or not. These all support consolidating the cases.

Further, according to Code of Civil Procedure section 116.390, subdivision (c), “[i]f the small claims action is transferred prior to judgment, both actions shall be tried together in the transferee court.” Thus, because the small claims matter has already been transferred pursuant to Code of Civil Procedure section 116.390, this also supports consolidation of the matters.

Ruling

Moving Parties’ motion to consolidate is **GRANTED**. The actions are consolidated for all purposes pursuant to Code of Civil Procedure section 1048, subdivision (a).

14. 9:00 AM CASE NUMBER: C25-03089
CASE NAME: ROSE MARIE CUTINO VS. SERVICE FINANCE COMPANY, LLC
***HEARING ON MOTION IN RE: TRIAL PREFERENCE**
FILED BY: CUTINO, ROSE MARIE
TENTATIVE RULING:

Plaintiff Rose Marie Cutino (“Plaintiff” or “Cutino”) moves for an order granting a preferential trial date in this action, pursuant to Code of Civil Procedure section 36, subdivision (a), for trial within 120 days from the date of this hearing. Defendant Service Finance Company, LLC (“Defendant” or “SFC”) opposes the motion in part.

For the following reasons, the motion is **DENIED**.

Legal Standard

“A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings: (1) [t]he party has a substantial interest in the action as a whole[; and] (2) [t]he health of the party is such that a preference is necessary to prevent prejudicing the party’s interest in the litigation.” (Code Civ. Proc., § 36, subdivision (a).)

A motion made under Section 36(a) “may be supported by nothing more than an attorney’s declaration ‘based upon information and belief as to the medical diagnosis and prognosis of any party.’ [Citation.]” (*Fox v. Superior Court* (2018) 21 Cal.App.5th 529, 534, citing Code Civ. Proc., § 36.5 [“[a]n affidavit in support of a motion for preference under subdivision (a) of Section 36 may be signed by the attorney for the party seeking preference based upon information and belief as to the

medical diagnosis and prognosis of any party”].) The affidavit may also consist entirely of hearsay and conclusions. (*Id.*)

If the court makes the requisite finding of fact on a motion for preference under Code of Civil Procedure section 36, subdivision (a), it has no discretion to deny the motion due to the use of the word “shall” in the statute. (See *Peters v. Superior Court* (1989) 212 Cal.App.3d 218, 224-25; see also *Rice v. Superior Court* (1982) 136 Cal.App.3d 81, 89-94.) “Failure to complete discovery or other pre-trial matters does not affect the absolute substantive right to trial preference for those litigants who qualify for preference under subdivision (a) of section 36.” (*Swaithes v. Superior Court* (1989) 212 Cal.App.3d 1082, 1085.) “The trial court has no power to balance the differing interests of opposing litigants in applying the provision.” (*Ibid.*)

Analysis

With respect to Plaintiff Rose Marie Cutino, the Court finds that she is over 70 years of age and has a substantial interest in the action as a whole. However, she has not established that her health is such that a preference is necessary to prevent prejudicing his interest in the litigation. The declaration of Kristin Kemnitzer in support of Plaintiff’s motion states that she has “been made aware of Plaintiff’s age and certain medical conditions” and that “Plaintiff is a two-time cancer survivor” and several years ago she was hospitalized due to congestive heart failure. She also states that Plaintiff has limited mobility and requires a walker to walk. These assertions, however, do not provide a factual basis for the Court to find that her health is such that a preference is necessary; it does not connect Plaintiff’s health issues with the potential prejudice to the litigation. There is no suggestion that Plaintiff’s health issues will interfere with her abilities to participate in the trial or otherwise prosecute her case.

The standard to apply when assessing a motion under section 36, subdivision (a), was addressed in *Fox v. Superior Court*. “The issue under subdivision (a) is not whether an elderly litigant might die before trial or become so disabled that she might as well be absent when trial is called. Provided there is evidence that the party involved is over 70, all subdivision (a) requires is a showing that that party’s ‘health ... is such that a preference is necessary to prevent prejudicing [her] interest in the litigation.’ (Italics added.).” (*Fox v. Superior Court, supra*, 21 Cal.App.5th at p.534.) Plaintiff has not made this showing.

Notwithstanding the foregoing determination, the Court has already given significant and due consideration to the concerns regarding the plaintiff’s age and the desire to move this case forward with all deliberate speed. At the case management conference on April 16, 2026, the Court set a jury trial for October 26, 2026 at 10 a.m. and advanced the date for the demurrer hearing referenced in Defendant’s opposition and made other procedural rulings in an effort to substantially streamline the life cycle of this case. As a consequence, the current trial date in the matter is not far beyond the 120-day trial setting to which Plaintiff would be entitled if she were to establish a basis for the statutory trial setting preference.

15. 9:00 AM CASE NUMBER: MSC20-01624
CASE NAME: RAFAY VS FCA US, LLC
*HEARING ON MOTION IN RE: ATTORNEYS' FEES, COSTS, AND EXPENSES
FILED BY: RAFAY, RAYAN
TENTATIVE RULING:

The Court, *sua sponte*, continues this matter to **June 15, 2026, 9:00 am in Department 34.**

16. 9:00 AM CASE NUMBER: N23-1456
CASE NAME: PETITION OF: CURIA GLOBAL, INC.
*HEARING ON MOTION IN RE: AMEND JUDGMENT TO ADD VAXANIX BIO LTD. AND VAXANIX BIO
ACQUISITION CORP. II AS JUDGMENT DEBTORS BY SUCCESSION
FILED BY:
TENTATIVE RULING:

Before the Court is Petitioner Curia Global, Inc.'s Motion to Amend Judgment to Add Vaxanix Bio Ltd. and Vaxanix Bio Acquisition Corp. II as Judgment Debtors by Succession.

Petitioner's Motion is **GRANTED** as set forth below.

Factual Background

Petitioner Curia Global, Inc. ("Curia") is a contract research and manufacturing organization that offers synthesis and contract manufacturing services for all phases of drug development. Respondent BryoLogyx, Inc. ("BryoLogyx") entered into a contract with Curia to provide such services. After a dispute arose between the parties, Curia initiated arbitration related to the dispute.

Curia ended up prevailing at the arbitration. Curia then moved to have the Court confirm the arbitration award. The Court confirmed the arbitration award. Curia now moves to amend the judgment to add Vaxanix Bio Ltd. ("Bio") and Vaxanix Bio Acquisition Corp. II ("Acquisition") (collectively the "Vaxanix Entities") due to the merger of BryoLogyx with Acquisition.

On or about January 28, 2024, BryoLogyx entered into an "Agreement and Plan of Merger" with Bio and Acquisition. (Tilghman Decl. Ex. A-6.) According to the Merger Agreement, the "[Bio], [Acquisition] and [BryoLogyx] intend to effect a merger of [BryoLogyx] with and into [Acquisition]..." (*Id.* at Recitals A.) The pertinent details of the merger will be discussed below.

The Vaxanix Entities object in part to the request. They argue that there is no basis to add Bio to the judgment but do concede that the Court can "amend the judgment to add only Vaxanix Acquisition [Corp. II]" to the judgment. Given that all parties agree that Acquisition ought to be added to the judgment, the Court will only address the arguments pertaining to the request to add Bio.

Standard

"Under [Code of Civil Procedure] section 187, the trial court is authorized to amend a judgment to add additional judgment debtors. ... As a general rule, 'a court may amend its judgment at any time so that the judgment will properly designate the real defendants....'" (*Danko v. O'Reilly* (2014) 232 Cal.App.4th 732, 735-36.) This sometimes occurs under an 'alter ego' theory. (*Ibid.*) "Modification of a

judgment may also be proper under the ‘successor corporation’ theory.” (*Wolf Metals Inc. v. Rand Pacific Sales Inc.* (2016) 4 Cal.App.5th 698, 704.) “According to that theory, when a corporation sells or transfers all of its assets to another corporation constituting its ‘mere continuation,’ the latter is also liable for the former’s debts and liabilities.” (*Id.* at 704-05.)

Analysis

“[I]t is long established law in California that a corporation formed by a consolidation or merger succeeded by operation of law to all the obligations and liabilities of the constituent corporations....” (*Rubio v. CIA Wheel Group* (2021) 63 Cal.App.5th 82, 102.) “The same is true for an asset purchase by a corporation which is a de facto merger.” (*Ibid.*) “More generally, a purchaser of assets has successor liability if ‘(1) there is an express or implied agreement of assumption, (2) the transaction amounts to a consolidation or merger of the two corporations, (3) the purchasing corporation is a mere continuation of the seller, or (4) the transfer of assets to the purchaser is for the fraudulent purpose of escaping liability for the seller’s debts.’” (*Ibid.* quoting *Cleveland v. Johnson* (2012) 209 Cal.App.4th 1315, 1327.)

Curia argues several theories as to why Bio is liable for the BryoLogyx judgment. First, the terms of the Merger Agreement state as such. Specifically, section 1.4(e) states:

Payment By The Parent or Merger Sub of The Accepted Company Liabilities.

At the Closing, [Bio] will pay, or will cause [Acquisition] to pay, as such paying Party is communicated in writing by [Bio] to [BryoLogyx] prior to the Closing, ***the Accepted Company Liabilities including therein such payments to Curia*** after the Closing to be in accordance with the payment terms set forth in the Curia Agreement or, if the Curia Agreement has been rejected by, and therefore is not executed and delivered by, Curia, the as [Bio] and [BryoLogyx] agree in writing prior to the Closing. (emphasis added.)

The “Accepted Company Liabilities is defined to mean “those Liabilities of [BryoLogyx] set out in Schedule 2.8 hereto.” (Merger Agreement, Ex. A.) Schedule 2.8, titled “Accepted [BryoLogyx] Liabilities includes “Curia (AMRI) \$2,735,293.” (*Id.* at Schedule 2.8.) The wording of this section indicates that Bio will pay the debt if it does not ‘cause’ Acquisition to do so.

In addition to the above, in the section pertaining to conditions for Closing, the Merger Agreement provides that BryoLogyx will have paid off all debts except for the Accepted Company Liabilities which are “to be paid by [Bio] or [Acquisition]....” (Merger Agreement, 1.3(b)(ix).) Curia also notes that the Merger Agreement makes clear that the use of “the word ‘or’ will be inclusive such that, for example, “A or B” will be deemed to mean “A or B or both A and B.” (*Id.* at 6.18(e).)

Thus, Curia argues that the terms of the Merger Agreement make clear that Bio agreed to pay (if Acquisition did not) the Curia liability owed by BryoLogyx. Accordingly, Bio should be added to the judgment since it has agreed to ensure Curia is paid for the Debt.

In Opposition, the Vaxanix Parties appear to agree with the above overview of how the Merger Agreement handles the payment. They note: “Although only Vaxanix Acquisition merged with BryoLogyx, the Merger Agreement contemplated that either Vaxanix Acquisition or its parent would assume the liability of Curia’s judgment, and that the parties would decide which entity would pay the judgment and memorialize that in writing prior to closing,” then quoting section 1.4(e) of the Merger

Agreement. (Opp. at 2:20-23.)

Bio then points to an Officer's Certificate, dated June 6, 2024, executed by the CEO of Bio and Acquisition (Mark Germain) which it claims waived certain provisions of the Merger Agreement. Specifically, section 3 of the Officer's Certificate states, in pertinent part:

In consideration of the foregoing, as evidenced by the Closing, the Company [BryoLogyx] agrees to waive the following conditions or requirements to Closing that otherwise were to be satisfied by [Bio] and/or [Acquisition]:...

- Section 1.4(e) with respect to the requirement calling for payment of Accepted Company Liabilities by [Bio] or [Acquisition] at the Closing; without negating the assumption of such liabilities by [Acquisition] upon the effectiveness of the Merger."

The Vaxanix Entities argue that based on this Officer's Certificate, "at the time of closing, **all parties agreed** to waive the condition that either Vaxanix Bio or Vaxanix Acquisition would pay the Curia judgment, instead defaulting to the general rule of a triangular merger that only Vaxanix Acquisition, and not Vaxanix Bio, would assume the liability of the Curia judgment." (Opp. at 3:15-18, emphasis added.)

The Officer's Certificate, however, was only issued by Bio and Acquisition. There is no such statement by BryoLogyx. As noted by Curia, BryoLogyx issued its own Officer's Certificate, dated May 8, 2024. That document does not include such a waiver. Under the terms of the Merger Agreement, BryoLogyx would have needed to execute a written waiver on its own behalf in order to waive that, or any other, provision of the Agreement. (Merger Agreement at 6.12(b).)

The Vaxanix Parties' position does not support a finding that terms of section 1.4(e) were effectively waived by the parties to the Merger Agreement.

Triangular Merger and De Facto Merger

The Vaxanix Parties contend that the merger between the entities was a "triangular merger" and therefore insulates Bio from assuming the Curia liabilities. They argue that the "structure of the transaction was a triangular merger, which permits the acquiring company (Vaxanix Bio) to acquire control of a target company (BryoLogyx) by forming a new subsidiary (Vaxanix Acquisition) into which the target company is merged." (Opp. at 2:12-16 citation omitted.)

The structure of the transaction as a 'triangular merger,' or any other designation, does not shield the parent corporation from liability if the transactions is deemed a de facto merger. (*Rubio*, supra, 63 Cal.App.5th at 102.) The de facto merger "exception applies where the assets of one corporation are transferred without consideration which can be made available to satisfy claims or 'where the consideration consists wholly of shares of the purchaser's stock which are promptly distributed to the seller's shareholders in conjunction with the seller's liquidation.'" (*Marks v. Minn. Mining & Mfg. Co.* (1986) 187 Cal.App.3d 1429, 1435, citations omitted.)

While a triangular merger may not result in a de facto merger, courts have held that they may be deemed a de facto merger if "they are structured to disadvantage creditors or shareholders." (*North Valley Mall, LLC v. Longs Drug Stores California, LLC* (2018) 27 Cal.App.5th 598, 604.) As noted by Curia, the "Merger Consideration" received by BryoLogyx consisted of shares in Bio, not Acquisition, leaving BryoLogyx (now merged into Acquisition) a shell company with no consideration from the merger with which to pay Curia. (Merger Agreement at § 1.5(b).) There was no cash consideration

paid. “The crucial factor in determining whether a corporate acquisition constitutes either a de facto merger or a mere continuation is the same: whether adequate cash consideration was paid for the predecessor corporation’s assets.” (*Franklin v. Usx Corp.* (2001) 87 Cal.App.4th 615, 625.)

The de facto merger “exception has been invoked where on corporation takes all of another’s assets without providing any consideration that could be made available to meet claims of the other’s creditors.” (*Ray v. Alad Corp.* (1977) 19 Cal.3d 22, 28.) That is what occurred here. The Vaxanix Parties attempted to structure the transaction such that Curia would be effectively unable to collect the judgment it has against BryoLogyx.

Conclusion

Curia’s motion to amend the judgment to add Vaxanix Bio Ltd. and Vaxanix Bio Acquisition Corp. II to the Judgment entered on May 27, 2024, is **GRANTED**.

17. 9:00 AM CASE NUMBER: N25-2378
CASE NAME: CLAIM OF:RYAN RENN
***HEARING ON MINOR'S COMPROMISE**
FILED BY: RENN, RANDALL
TENTATIVE RULING:

Petitioner Randall Renn (“Petitioner”) filed a petition for approval of compromise of minor’s claims on December 5, 2025 (the “Minor’s Compromise”) seeking court approval of the compromise and proposed disposition set forth therein relating to the minor claimant Ryan Renn (the “Minor”). See Code Civ. Proc. § 372 and Rule 7.950 *et seq.* of the California Rules of Court (CRC). The Minor’s Compromise was set for hearing on April 27, 2026. An amended petition was filed on January 15, 2026.

Analysis

The Minor’s Compromise is unopposed. The Court has considered the verified Minor’s Compromise and supporting declaration as amended. While the Court is inclined to find the proposed terms to be just and reasonable, it does not appear that Petitioner has been appointed guardian ad litem herein as yet.

Disposition

The Court finds and rules as follows:

1. The PARTIES ARE ORDERED TO APPEAR. The Court will entertain any oral motion for appointment of Petitioner as guardian ad litem in connection with granting the relief sought. Appropriate forms of order should be brought to the hearing.

Discovery Law & Motion

18. 9:01 AM CASE NUMBER: C23-02801
CASE NAME: MARIE MILLER VS. JOSHUA SHAPLAND
***HEARING ON MOTION FOR DISCOVERY COMPEL DEFENDANT JOSHUA SCOTT SHAPLAND'S**
FURTHER RESPONSES TO FORM INTERROGATORIES SET 1
FILED BY: MILLER, MARIE
TENTATIVE RULING:

The Court, *sua sponte*, continues this matter to **August 3, 2026, 9:00 am in Department 34**. The Court shall issue a further order.

19. 9:01 AM CASE NUMBER: C23-02801
CASE NAME: MARIE MILLER VS. JOSHUA SHAPLAND
***HEARING ON MOTION FOR DISCOVERY COMPEL DEFENDANT JOSHUA SCOTT SHAPLAND'S**
FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET 1
FILED BY: MILLER, MARIE
TENTATIVE RULING:

The Court, *sua sponte*, continues this matter to **August 3, 2026, 9:00 am in Department 34**. The Court shall issue a further order.

20. 9:01 AM CASE NUMBER: C23-02801
CASE NAME: MARIE MILLER VS. JOSHUA SHAPLAND
***HEARING ON MOTION FOR DISCOVERY COMPEL DEFENDANT JOSHUA SCOTT SHAPLAND'S**
FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET 1
FILED BY: MILLER, MARIE
TENTATIVE RULING:

The Court, *sua sponte*, continues this matter to **August 3, 2026, 9:00 am in Department 34**. The Court shall issue a further order.

Law & Motion
ADD-ON

21. 9:00 AM CASE NUMBER: C24-01078

CASE NAME: JOHN CARDENAS, JR. VS. AMERICA WEST MEDICAL TRANSPORT

***HEARING ON MOTION IN RE: LEAVE TO FILE FIRST AMENDED COMPLAINT**

TENTATIVE RULING:

Before the Court is a motion for leave to file a first amended complaint by Plaintiffs John Cardenas, Sr. and Geri Cardenas. This motion is opposed by Defendants Antioch Dunes Healthcare, LLC and 1210 A Street.

Plaintiffs' motion is **GRANTED**. Plaintiffs shall file their First Amended Complaint within ten days of this hearing.

Request for Judicial Notice

In support of their opposition, Defendants request judicial notice of five items: (1) the Court's November 7, 2024 ruling on their demurrer to the Complaint, (2) Plaintiffs' November 21, 2024 *ex parte* application for leave to file a first amended complaint and the Court's December 17, 2024 order granting that application, (3) Plaintiffs' July 29, 2025 Opposition to Defendants' Motion for Summary Judgment and supporting papers, (4) the Court's October 26, 2025 tentative ruling on Defendants' Motion for Summary Judgment, and (5) the Court's December 4, 2025 ruling adopting the tentative ruling as the final ruling on Motion for Summary Judgment. (Defendant's Request for Judicial Notice ("RJN"), 2:6-19.)

Each of these items is a record of this Court. Judicial notice of the records of "any court of this state" is authorized under Evidence Code section 452(d). (Evid. Code, § 452(d)(1).) The Court takes judicial notice of the existence of identified court records, the fact that they were filed or issued, the dates reflected therein, the language used in those documents, and the orders and rulings they contain, but not of the truth of any hearsay statements or disputed factual matters asserted within them. (*Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 882; *Herrera v. Deutsche Bank National Trust Co.* (2011) 196 Cal.App.4th 1366, 1375.) Only matters that are reasonably beyond dispute are subject to judicial notice. (*Tenet Healthsystem Desert, Inc. v. Blue Cross of California* (2016) 245 Cal.App.4th 821, 835.)

The unopposed request for judicial notice is **GRANTED**.

I. Brief Factual and Procedural Background

Defendant Antioch Dunes does business as Delta View Post Acute ("Delta View") and operates a skilled nursing facility at 1210 A Street, Antioch, California. (Complaint ("Compl.") at 2:1-7.) This

case arises out of a January 9, 2024^{[41](#)} auto accident that occurred while Plaintiff John Cardenas, Sr., then a patient of Defendants' skilled nursing facility, was being unloaded from an America West Medical Transport ("America West") gurney van that had delivered him back to Defendants' facility from a non-emergency medical appointment. (*Id.* at 3:9-26.)

Defendants' front loading zone sits in front of the Delta View facility, parallel to a busy, four-lane roadway called A Street, which has a posted speed-limit of 30 miles-per-hour that drivers often exceed. (RJN, Exhibit C at 3.) It was approximately 5:50 p.m. and dark outside at the time Mr. Cardenas returned from his medical appointment in the American West gurney van; the roadway on A Street was busy. (Compl. at 3:3, 14-15.) The loading zone was occupied by non-medical transport vehicles at that time. (RJN, Exhibit C at 3.) The driver for the America West gurney van, Erick Rosales Sacramento ("Mr. Rosales"), idled for approximately 30 seconds to one minute in front of the Delta View facility in the hopes that a spot would open up; when one did not, he opted to double park the gurney van in the lane of traffic adjacent to the loading zone on A Street. (*Ibid.*)

While the gurney van driver and his partner unloaded Mr. Cardenas from the vehicle, all three men were struck by a vehicle traveling on A Street, driven by Defendant Monique "Monie" Ellis. (Compl. at 3:24-26; RJN, Exhibit C at 3.) Mr. Cardenas was severely injured in the impact; he sustained a broken back, a severed spine, three bruised vertebrae, a traumatic brain injury, a shoulder injury, and various cuts and bruises. (RJN, Exhibit C at 3.) He has undergone two back surgeries stemming from this incident. (*Ibid.*) He also became bed-bound as a result of the incident and unable to ambulate without assistance, which led to multiple severe bed sores requiring extensive wound care. (*Ibid.*)

On July 7, 2025, Mr. Cardenas also suffered a subsequent fall resulting in a fractured leg; Plaintiffs contend the January 9, 2024 incident was a substantial factor in causing the July 2025 fall. (Declaration of Ryan Kraft in support of motion for leave to file first amended complaint ("Kraft Dec.") ¶10.)

Behind Delta View's facility is a rear parking lot accessible by two driveways that feed out from behind the building onto A Street from each side of the building. (RJN, Exhibit C at 3.) Defendants did not have signage indicating the existence of a dedicated loading and unloading zone for medical transport vehicles behind the building, although facility administrators testified that medical transport vehicles are and were at the time of the subject incident permitted to load and unload patients either in the back parking lot or in the front loading zone. (*Ibid.*) Evidence has been adduced that Mrs. Cardenas, and at least two medical transport employees were told by Delta View employees that the back parking lot was for facility staff use only. (*Ibid.*)

The Plaintiffs filed a Complaint for damages in this case on April 23, 2024, against Ms. Ellis (the alleged driver of the vehicle that struck Mr. Cardenas and the gurney van), the gurney van operator America West Medical Transport, Inc., Antioch Dunes Healthcare, LLC, 1210 A Street, LLC, and Does 1-30. The Plaintiffs alleged three causes of action: (1) Motor Vehicle Negligence, (2) Premises Liability, and (3) Negligence. A default judgment was entered against Ms. Ellis on August 8, 2024. The initial Complaint expressly alleged that Plaintiff Geri Cardenas suffered loss of consortium

damages as a result of Mr. Cardenas' injuries, incorporating those allegations into each cause of action. (Compl. at 4:5-6, 18-21; 5:27-6:2; 6:16-19.)

Plaintiffs amended their complaint to substitute in Mr. Rosales (the gurney van driver) as Doe No. 1 and subsequently entered into a good faith settlement with America West and Mr. Rosales on June 2, 2025.

A demurrer filed by Defendants Antioch Dunes, and 1210 A Street, was filed June 17, 2024, as to Plaintiffs' second and third causes of action; in a November 7, 2024 ruling the demurrer was sustained in part and overruled in part. It was overruled as to Plaintiffs' second cause of action and sustained without leave to amend as to their third cause of action on the grounds that the Court found the negligence claim was duplicative of the premises liability claim.

Pursuant to stipulation by all parties, Plaintiffs filed an *ex parte* application for permission to file a First Amended Complaint to add a standalone cause of action for Mrs. Cardenas' loss of consortium claim and to remove the negligence cause of action against Defendants Antioch Dunes and 1210 A Street that the court had dismissed on demurrer. (RJN, Exhibit B.) The Court granted the application on December 17, 2024, and ordered the First Amended Complaint filed within 10 days of the order. (*Ibid.*) Plaintiffs' counsel Ryan Kraft never filed the stipulated-to First Amended Complaint. (Kraft Dec. ¶16.) Plaintiffs' reply to Defendants' opposition to the instant motion explains that this was the result of counsel's paralegal's failure to file the First Amended Complaint. (Plaintiffs' Reply to Defendant's Opposition to Motion for Leave to File First Amended Complaint ("Reply") at 3:6-7.)

Defendants filed a motion for summary judgment May 6, 2025. The Court issued a tentative ruling denying the motion on October 26, 2025, which was adopted as the final ruling on December 4, 2025. (RJN, Exhibit C.) Among the arguments Plaintiffs raised in their opposition to the motion for summary judgment was that Defendants were *per se* negligent because they failed to operate a code compliant loading zone as required by California building codes for skilled nursing facilities. However, because negligence *per se* was outside the scope of Plaintiffs' complaint, the Court did not consider that argument. (RJN, Exhibit C.)

Plaintiffs' counsel emailed Defendants' counsel January 8, 2026, requesting stipulation to a "second amended complaint" to address "the negligence per se issue that the court raised in the MSJ ruling" and to "update[] the liability facts to what is currently known and include[] the July 2025 incident." (Declaration of Christopher T. Choi in Support of Defendants' Opposition to Plaintiffs' Motion for Leave to File First Amended Complaint ("Choi Dec."), Exhibit B.) Attached to the email was a red-lined copy of the complaint, captioned as the "Second Amended Complaint." The following day, Defendants' counsel Christopher Choi replied, informing Mr. Kraft that Defendants would not stipulate to the filing of an amended complaint. (Choi Dec., Exhibit C.)

The proposed amended complaint submitted with Plaintiff's motion and attached to the email to Mr. Choi was red-lined against what appears to be the previously stipulated to but un-filed First Amended Complaint rather than against the operative complaint. (see generally Compl.; Kraft Dec.,

Exhibit 1.) Cause of action number four for loss of consortium appears in black text despite not being native to the operative complaint. (see generally Compl; Kraft Dec., Exhibit 1 at 8; RJN, Exhibit B.) Plaintiffs in their reply explain that Mr. Kraft was under the misapprehension that the amendment was the second, and that he only discovered his paralegal had failed to file the First Amended Complaint “when Plaintiffs filed this subject motion, which was originally submitted as a motion for leave to file a second amended complaint, which was then changed to first amended complaint after the Court Clerk said there was not a first amended complaint on file.” (Reply at 3:6-10.)

The Court’s docket shows an E-filing rejection from February 4, 2026, showing a failed attempt to file a “Motion to File SAC” because “[a] first amended complaint has not been filed in this case.” Plaintiffs filed the instant motion seeking leave to file a First Amended Complaint February 5, 2026.

II. Legal Standard

A trial court has discretion to allow amendment of any pleading at any stage of the proceedings, even as late as trial. (Code Civ. Proc., §§ 473, 576; *Sullivan v. City of Sacramento* (1987) 190 Cal.App.3d 1070, 1081 “[C]ourts should indulge in great liberality in permitting amendment so that no litigant shall be deprived of his day in court because of technicalities.” (*Landis v. Superior Court of Los Angeles County* (1965) 232 Cal.App.2d 548, 554.) This is especially so with respect to a party’s initial complaint. (*City of Torrance v. Southern California Edison Co.* (2021) 61 Cal.App.5th 1071, 1091.) “Indeed, ‘it is a rare case in which “a court will be justified in refusing a party leave to amend his pleading so that he may properly present his case.”’ [Citation]” (*Douglas v. Superior Court* (1989) 215 Cal.App.3d 155, 158.)

The court’s discretion to deny leave is accordingly narrow, and “instances justifying denial of leave are rare.” (*Armenta ex rel. City of Burbank v. Mueller Co.* (2006) 142 Cal.App.4th 636, 642.) “[A]bsent a showing of prejudice to the adverse party, the rule of great liberality in allowing amendment of pleadings will prevail.” (*Board of Trustees v. Superior Court* (2007) 149 Cal.App.4th 1154, 1163.) Leave to amend may be denied where the proposed amended pleading fails to state a cause of action only when the insufficiency of the proposed amendment is established by controlling precedent and the insufficiency could not be cured by further appropriate amendment. (*Cal. Casualty Gen. Ins. Co. v. Superior Court* (1985) 173 Cal.App.3d 274, 280-281 disapproved on other grounds by *Kransco v. American Empire Surplus Lines Ins. Co.* (2000) 23 Cal.4th 390.) “[T]he preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings.” (*Id.*)

III. Preliminary Matter

Reply papers to an opposition to a motion for leave to amend must be filed with the court at least five court days before the hearing. (Code Civ. Proc., § 1005(a)(12), (b).)

Here, Plaintiffs reply was filed electronically April 15, 2026, fewer than five court days before the

originally-noticed April 20, 2026 hearing. The Court continued the hearing on its own motion to April 27, 2026, which cured any prejudice to Defendants. The Court has considered the reply in its discretion. (Cal. Rules of Court, rule 3.1300(d)), however Plaintiffs' counsel is reminded to comply with statutory filing deadlines in future.

IV. Analysis

A. California Rules of Court, Rule 3.1324

Defendants ask the Court to deny leave to amend on the basis of Plaintiffs' failure to comply with California Rule of the Court 3.1324. (Opposition to Plaintiffs' Motion for Leave to File First Amended Complaint ("Opp.") at 7:17-19.)

A motion to amend a pleading must include a copy of the proposed amended pleading, serially numbered to differentiate it from previous pleadings, and it must state (1) what if any allegations are proposed to be deleted, (2) what if any allegations are proposed to be added, and (3) where, by page, paragraph, and line number the allegations to be added or deleted are located. (Cal. Rules of Court, rule 3.1324(a).) A motion to amend a pleading must also have attached a declaration that specifies why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, and why the request to amend was not made sooner. (Cal. Rules of Court, rule 3.1324(b).)

Here, Plaintiffs have substantially complied with rule 3.1324. Plaintiffs attached a red-lined copy of the proposed First Amended Complaint to a declaration from Plaintiffs' counsel, Ryan Kraft. Mr. Kraft, in his declaration states that the amendment is necessary to add allegations uncovered in discovery "throughout 2025" (Kraft Dec. ¶18), to remove a cause of action for negligence against Defendants ruled duplicative on demurrer in November 2024 (*Id.* ¶16), to add a negligence *per se* argument based on the summary judgment ruling in December 2025, (*Id.* ¶19), to add a standalone loss of consortium cause of action for Mrs. Cardenas (*Id.* ¶16), and to include information about a July 2025 fall Mr. Cardenas suffered, the cause of which Plaintiffs allege is attributable to the January 9, 2024 subject incident (*Id.* ¶10).

Defendants argue the instant motion is procedurally defective because the loss of consortium claim Plaintiffs seek to add appears in black text rather than red as a new addition should. While Plaintiffs' counsel fails to explain this anomaly, it is explained by the procedural history. The red-lined proposed First Amended Complaint appears to use as its foundation not the operative complaint, but the proposed amended complaint from the parties' November 2024 stipulation to a First Amended Complaint. (RJN, Exhibit B.) The loss of consortium claim therefore appears in black text because Plaintiffs' counsel red-lined the document already agreed upon by all parties and ordered by the Court in December 2024. (RJN, Exhibit B.)

"Judges...generally prefer to avoid acting as automatons[,] and routinely reject requests by counsel to function solely in a ministerial capacity. Rigid rule following is not always consistent with a court's function to see that justice is done." (*Kapitanski v. Von's Grocery Co.* (1983) 146 Cal.App.3d

29, 32.) The purpose of California Rule of the Court 3.1324 is to ensure that the court and the opposing party have full notice of every proposed change and the reasons for each. That purpose is satisfied here.

B. Loss of Consortium

Defendants argue that the Court should deny leave to amend to add a standalone cause of action for Mrs. Cardenas' loss of consortium claim on the ground that the two-year statute of limitations for loss of consortium under Code of Civil Procedure section 335.1 started running on the date of the subject incident, January 9, 2024, while the instant motion was not brought until February 5, 2026. (*Uram v. Abex Corp.* (1990) 217 Cal.App.3d 1425, 1436-1437; Opp. at 7:27-8:1, 8:9-12, 22-24.) This argument is unpersuasive.

Where the statute of limitations has run, an amended complaint will be deemed filed as of the date of the original complaint so long as recovery is sought in both pleadings on the same general set of facts (*Austin v. Massachusetts Bonding & Ins. Co.* (1961) 56 Cal.2d 596, 600; *Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 489.) "The relation-back doctrine requires that the amended complaint must (1) rest on the *same general set of facts*, (2) involve the *same injury*, and (3) refer to the *same instrumentality*, as the original one." (*Norgart v. Upjohn Co.* (1999) 21 Cal.4th 383, 408-409 (emphasis in original).)

Here, these conditions are met. Plaintiffs do not propose to add new facts, and the injury and instrumentality remain the same. Mrs. Cardenas is not a new plaintiff asserting a new claim; loss of consortium damages were expressly alleged on Mrs. Cardenas' behalf in the original complaint and incorporated into each cause of action. (Compl. at 4:5-6, 18-21; 5:27-6:2; 6:16-19.) The proposed amendment does not introduce a new party, a new theory of recovery, or new facts – it formalizes into a standalone cause of action damages that have been part of this case from the outset.

Defendants rely on *Bartolo v. Superior Court* (1975) 51 Cal.App.3d 526, for the proposition that a spouse cannot subvert the statute of limitations by seeking an amendment to his or her injured spouse's timely complaint after the spouse's statute of limitations has expired because a loss of consortium does not relate back as it is a wholly different legal liability or obligation. *Bartolo*, however, involved a spouse who was not a party to the original action seeking to intervene after the limitations period had run. This is not the case here, where Mrs. Cardenas has been a plaintiff in this litigation from its inception.

Because Mrs. Cardenas has been a named plaintiff since the original Complaint was filed and because loss of consortium damages were expressly alleged in each cause of action at the outset, the proposed amendment does not introduce a new party, a new theory of recovery, or new facts. It formalizes into a standalone cause of action damages that have been a part of this case from the start. Defendants' statute of limitations arguments therefore present no basis to deny leave.

C. Unreasonable Delay and Prejudice

Defendants argue that Plaintiffs unreasonably delayed in seeking leave to amend and that the

amendment will prejudice Defendants by leaving insufficient time to file a motion for summary adjudication on the applicability of the Medical Injury Compensation Reform Act (“MICRA”) before trial. (Opp. at 11:3-5.) Neither argument warrants denial of this motion.

“Ordinarily, leave to amend a complaint should be liberally granted unless the opposing party would be prejudiced by the amendment.” (*Komorsky v. Farmers Ins. Exchange* (2019) 33 Cal.App.5th 960, 971.) Where inexcusable delay *and* probable prejudice to the opposing party are present, denial of leave to amend is warranted. (*Estate of Murphy v. Gulf Ins. Co.* (1978) 82 Cal.App.3d 304, 311.)

Here, Plaintiffs filed this motion approximately two months after the December 4, 2025 final ruling on the motion for summary judgment. That is the ruling that put Plaintiffs on clear notice that negligence *per se* needed to be pleaded explicitly in an amended complaint to pursue Plaintiffs’ theory related to failure to comply with building codes as a basis for *per se* negligence. Plaintiffs sought stipulation from Defendants January 8, 2026, which Defendants denied. The instant motion followed reasonably promptly thereafter, with a filing date of February 5, 2026. Defendants argue the delay should be measured from the October 26, 2025 tentative ruling or even the July 29, 2025 summary judgment opposition in which Plaintiffs first raised negligence *per se*. (Opp. at 9:3-14.) Even accepting any of the earlier dates, absent prejudice, delay alone is insufficient to deny leave to amend. (*Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-565.)

As to the standalone loss of consortium cause of action, all parties stipulated to a First Amended Complaint to add the loss of consortium claim and remove the negligence claim in November 2024, and the Court ordered it filed within 10 days of its December 17, 2024 order. Plaintiffs did not comply with that order due to an error by a paralegal in Plaintiffs’ counsel’s office. Given the liberality of the policy around leave to amend, delay alone does not warrant denial of leave to amend absent a showing of prejudice to the opposing party. (*Landis, supra*, 232 Cal.App.2d at 554; *Douglas, supra*, 215 Cal.App.3d at 158; *Armenta ex rel. City of Burbank, supra*, 142 Cal.App.4th at 642; *Higgins, supra*, 123 Cal.App.3d at 564-565.)

Defendants have not demonstrated the kind of tangible harm that justifies denial of leave. Prejudice might be shown for instance where “the trial date is set, the jury is about to be impaneled, counsel, the parties, the trial court, and the witnesses have blocked the time, and the only way to avoid prejudice to the opposing party is to continue the trial date to allow further discovery.” (*Magpali v. Farmers Group* (1996) 48 Cal.App.4th 471, 488.)

Defendants stipulated to the loss of consortium amendment in November 2024 and have therefore been on notice of that claim for well over a year; furthermore, as noted *ante*, loss of consortium damages were expressly alleged on Mrs. Cardenas’ behalf in the original complaint and incorporated into each cause of action. (Compl. at 4:5-6, 18-21; 5:27-6:2; 6:16-19.) “[W]here an amendment provides “merely the addition of matters essential to make the original cause of action complete” the amendment should certainly be allowed by the court. [Citation.] Such an amendment effects no change in the nature of the case, and can therefore cause no surprise or

prejudice to the adverse party.” (*Estate of Hunter* (1961) 194 Cal.App.2d 859, 865.)

Here, no critical evidence has been lost, no depositions need to be retaken, and no new discovery is required. Defendants have been on notice of the negligence *per se* theory since July 2025, when Plaintiffs submitted two expert declarations on that precise issue in opposition to the motion for summary judgment. Defendants have been on notice of the loss of consortium allegation since the litigation’s inception. Furthermore, trial is not until September 21, 2026, and a continuance is available should any scheduling prejudice materialize. (*Honig v. Financial Corp. of America* (1992) 6 Cal.App.4th 960, 967.) This case was filed in April 2024 and is accordingly not in danger of running afoul of the five-year period for bringing an action to trial. Under these circumstances, Defendants cannot show any meaningful prejudice from amendment, only the ordinary burden of continuing to defend the case on theories and allegations of which they have long been aware.

Defendants’ request that the Court condition the grant of leave on setting a hearing date for a motion for summary adjudication on MICRA is denied. “[T]he court’s discretion to impose conditions on leave to amend the complaint extends only to those conditions which are just, i.e., intended to compensate the defendants for any inconvenience belated amendment may cause.” (*Armenta ex rel. City of Burbank, supra*, 142 Cal.App.4th at 642.) Conditioning leave to amend on compliance with discovery demands or other litigation obligations beyond those necessary to compensate for any direct inconvenience caused by the amendment is an improper exercise of discretion. (*Ibid.*) Defendants remain free to pursue any motion for summary adjudication on MICRA within the time permitted by the applicable deadlines.

V. Conclusion

Plaintiffs’ motion for leave to file a First Amended Complaint is **GRANTED**. Plaintiffs shall file their First Amended Complaint within ten days of this hearing.

¹¹ Plaintiffs in both their Memorandum of Points and Authorities in Support of their Motion for Leave to File a First Amended Complaint and Plaintiffs’ counsel Ryan Kraft’s declaration, indicate that the subject incident took place on January 9, 2023, but this is incongruent with the January 9, 2024 date listed in their initial complaint; the Court relies on the operative complaint for the incident date. (MPA ISO Mot. Leave Am. at 2:4; Kraft Dec. at 2:3; Compl. at 3:9.)